

law, or circumstances. (Code of Civil Procedure § 1008(a)-(b); *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1098.) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008(a).)

Plaintiff fails to submit any declaration, much less one that includes the above information. It also fails to indicate what ‘new or different facts, law, or circumstances’ support a motion for reconsideration.

Plaintiff’s motion is **denied**.

In Opposition, Defendants requests the Court consider whether sanctions are appropriate under California Code of Civil Procedure sections 128.5 and 128.7.

Initially, the Court notes that any request for affirmative relief made in an opposition is improper and will not be considered by the Court. “An application for an order is a motion.” (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent [Party] seeks affirmative relief, it is required to file a motion seeking such relief.

In addition, sanctions under both Code of Civil Procedure sections have strict procedural requirements including a ‘safe harbor’ provision which requires the party seeking sanctions to serve the ‘offending party’ with the motion for sanctions. If Defendants believe that Plaintiff’s actions are sanctionable they need to follow the proper procedures for seeking sanctions.

The Court will not consider a request for sanctions made in an opposition that has not adhered to any of the procedural requirements for such a request.

Conclusion

Plaintiff’s Demand to Rescind Crimes Based Order is **denied**.

10. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO KATRINA M. KREBS FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

11. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MEGAN R. BRILLAUT FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

12. 9:00 AM CASE NUMBER: C25-03121

CASE NAME: JACOB CANALE VS. KELLY BOZARTH

***HEARING ON MOTION IN RE: FOR SANCTIONS**

FILED BY: BOZARTH, KELLY

TENTATIVE RULING:

Before the Court is Defendants' Center for Social Dynamics, LLC, and Kelly Bozarth's Motion for Sanctions.

Defendants' Motion for Sanctions is **denied**.

Procedural Background

Plaintiff filed the initial Complaint on October 23, 2025. It asserted a single cause of action for violation of the Private Attorneys General Act, California Labor Code § 2698 et seq.

On March 16, 2026, Defendants filed a demurrer and a motion to strike directed toward the Complaint. Thereafter, on April 15, 2026, Defendants filed the instant motion for sanctions arguing that Plaintiff's Complaint "lack[s] facial merit of any kind."

The hearings on Defendants' demurrer and motion to strike were scheduled for July 23, 2026. The Court issued its tentative rulings on July 22. The tentative ruling overruled the demurrer as to Defendant Center for Social Dynamics and sustained the demurrer as to Ms. Bozarth – with leave to amend. The tentative ruling denied the motion to strike. No party contested the tentative rulings – so they became the order of the Court as of 4:00 p.m. on July 22. (Local Rule 3.43 (2).)

Legal Standard

"Under section 128.7, an attorney or unrepresented party who files a pleading, motion, or similar paper must sign the document, which impliedly certifies the pleading has legal and factual merit." (*Levy v. Blum* (2001) 92 Cal.App.4th 625, 636.) "The signature reflects the certification of the attorney or unrepresented party that the pleading is not being presented for an improper purpose; the legal contentions are warranted by law or nonfrivolous argument for extension, modification or reversal of existing law; the allegations and factual contentions have evidentiary support or are likely to have such support after a reasonable opportunity to further investigate; and the denials of factual contentions are warranted by the evidence." (*Ibid.*)

In short, "Code of Civil Procedure section 128.7 allows sanctions to be imposed upon attorneys who present to the court claims, defenses or legal contentions not warranted by existing law, and allows sanctions against parties and attorney when pleadings are presented primarily for an improper purpose, such as to harass or cause a needless increase in the cost of litigation." Section 128.7 imposes a lower threshold for sanctions against an attorney than section 128.5. "Section 128.7 'requires only that the conduct be 'objectively unreasonable'" (*Burkle v. Burkle* (2006) 144 Cal.App.4th 387, 401.)